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| Case                               | Title / Nature of Case                                  |
|------------------------------------|---------------------------------------------------------|
| 02:00 PM                           |                                                         |
| 17-CLJ-02052                       | PORTFOLIO RECOVERY ASSOCIATES, LLC VS. JONATHAN BOLANOS |
| LINE 1                             |                                                         |
| PORTFOLIO RECOVERY ASSOCIATES, LLC | MICHAEL S. HUNT                                         |
| JONATHAN BOLANOS                   |                                                         |

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PLAINTIFF: PORTFOLIO RECOVERY ASSOCIATES, LCC'S HEARING ON CLAIM OF EXEMPTION

TENTATIVE RULING:

On June 1, 2026, plaintiff Portfolio Recovery Associates ("Portfolio"), the judgment creditor herein, filed an opposition to defendant and judgment debtor Jonathan Bolanos ("Bolanos")'s claim of exemption. (See Opposition to Claim of Exemption).

California Code of Civil Procedure, section 706.050 provides, in pertinent part, that garnishment of the wages of an employee is limited to the lesser of 20 percent of the disposable earnings of an individual judgment debtor for any workweek subject to levy (except for certain high earners). The term "disposable earnings" is defined as "the portion of an individual's earnings that remains after deducting all amounts required to be withheld by law." (Code Civ. Proc., § 706.011, subd. (a).)

The burden of proof is on the judgment debtor to demonstrate that the property to be levied on is exempt in whole or in part. (Code Civ. Proc., § 703.580.) Bolanos has submitted a financial statement. Portfolio has a generalized objection but does not identify any particular deduction as "not required by law" or object to any specific expense as excessive. It does, however, indicate that it would accept \$200 per pay period.

It is of note that Bolanos' savings are below the current automatic exemption for funds held in a bank account, which is \$2,244. (Code Civ. Proc., § 704.220, subd, (a), (e); Jud. Council, Form EJ-156, at p. 2 [July 21, 2025].) Accordingly, the Court finds that all of Bolanos' savings are exempt. It is also of note that the Sheriff's Office currently holds \$890.95. It appears from Mr. Bolanos' pay stub that, that is an amount already garnished from his wages from his two pay checks. The Sheriff's Office asks for an Order determining disposition of those funds and neither party has taken a position on the matter.

Bolanos' financial statement is inconsistent with his paystubs. Bolanos indicates his net monthly income is \$1500.28 and he claims monthly expenses of \$2,310. While his expenses are generally reasonable (Code Civ. Proc., § 706.051), his net monthly income appears to be higher than claimed. Looking just at the two paystubs provided, his net monthly income appears to be approximately \$2,356. But that figure appears to underrepresent his monthly income because it excludes the more than \$400 per pay period that it appears was garnished for this case, which would make it appear that Bolanos could pay at least \$846 per month towards his debt.

Accordingly, absent additional information provided at the hearing and based on the information provided, it appears that Bolanos could pay the \$200.00 per pay period towards the outstanding debt sought by Portfolio.

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Accordingly, the Court GRANTS creditor's Opposition to defendant/judgment debtor's claim of exemption. The Court ORDERS Bolanos' wages to be garnished in the amount of \$200.00 per pay period. The Court also ORDERS that the Sheriff's Office may release the \$890.95 already garnished to the creditor.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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02:00 PM

17-CLJ-04102

BH FINANCIAL SERVICES, INC. VS. HECTOR BARRAGAN, ET AL.

LINE 2

BH FINANCIAL SERVICES, INC.  
HECTOR BARRAGAN

JOHN P. KENOSIAN

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PLAINTIFF: BH FINANCIAL SERVICES, INC.'S CLAIM OF EXEMPTION (*continued from 6/08/26*)

TENTATIVE RULING:

On May 8, 2026, plaintiff BH Financial Services, Inc. ("BH"), the judgment creditor herein, filed an opposition to defendant and judgment debtor Hector Barragan ("Barragan")'s claim of exemption. (See Opposition to Claim of Exemption).

California Code of Civil Procedure, section 706.050 provides, in pertinent part, that garnishment of the wages of an employee is limited to the lesser of 20 percent of the disposable earnings of an individual judgment debtor for any workweek subject to levy (except for certain high earners). The term "disposable earnings" is defined as "the portion of an individual's earnings that remains after deducting all amounts required to be withheld by law." (Code Civ. Proc., § 706.011, subd. (a)). On his claim of exemption filed on May 19, 2026, Barragan indicates he is able to pay \$40 every two weeks.

The burden of proof is on the judgment debtor to demonstrate that the property to be levied on is exempt in whole or in part. (Code Civ. Proc., § 703.580.) Barragan submitted a confidential financial statement. But while he completed part of the first page of the WG-007 form and provided his income, he initially failed to complete the form with his assets or expenses and omitted the entire second page of the form. BH objected on that basis.

Accordingly the Court lacked the information necessary to evaluate the validity of the exemption. This matter was therefore continued to July 13, 2026 at 2 p.m. Barragan was Ordered to fully complete the WG-007 and attach any additional supporting evidence and have it filed confidentially by June 15, 2026. Barragan was admonished that if he failed to do so, the Exemption will be denied. Barragan submitted additional information on June 12, 2026. BH has not supplemented its generalized objection.

Barragan appears to have filled out the financial form inaccurately because the two (May 19 and June 12) financial forms are filled out inconsistently, although the Court assumes that the errors were inadvertent and relies on the included paystub for income. And Barragan has still failed to include information on his assets despite the Court's admonition to do so. Regardless, just taking into account Barragan's pay stub and his claimed expenses (which the Court finds generally reasonable with the exception of the amount expended on clothing), he may have as much as \$659 per month available to pay his debt. But it is notable that Mr. Barragan has also submitted evidence that suggests he may be out-of-work for a period of three months this Fall (although it is unclear whether that will impact his income), as well as some evidence of potential housing instability.

Absent additional information provided at the hearing and based on the information provided, it appears that Barragan can pay \$125.00 per pay period towards the outstanding debt owed to BH.

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